

OBSERVATIONS BY M. HUBER.

[*Translation.*]

The reasons given by the Court for excluding all application of the Statute annexed to the so-called Barcelona Convention—while perfectly correct in so far as this is an independent convention in force between the Powers which may have ratified it or adhered to it—are not necessarily pertinent as regards the application of the Statute annexed to the Convention, within the precise and restricted limits fixed by Article 338 of the Treaty of Versailles. It is difficult to admit that the carrying out of Article 338, which lays down imperatively—and not simply as a possible alternative—the supersession of the “régime set up in Articles 332 to 337 by one to be laid down in a general convention”, can depend on the ratification of that convention as such by States which have already ratified the Treaty of Versailles, and therefore on an act left to the free will of each of the Parties.

As the supersession of the régime contained in Articles 332 to 337 by that established by the General Convention is, in Articles 338, 343 and 345, provided for only in regard to the said Articles 332 to 337 which are specifically and therefore limitatively mentioned, it does not seem possible to draw the inference that Article 331 is also replaced by Article 1 of the Statute annexed to the Barcelona Convention, so far as concerns Chapter III of Section II of Part XII of the Treaty of Versailles, which relates to the four river systems of the Elbe, the Oder, the Niemen and the Danube. The applicability of the Barcelona Convention as an independent convention, as referred to in the second sentence of Article 338 above mentioned, is not affected by this consideration. The limits of internationalization as far as Chapter III is concerned, and consequently the limits of the jurisdiction of the International Commission of the Oder, therefore remain fixed, as the Court has said, by Article 331.

(Signed) MAX HUBER.